

CONFORME

I, the undersigned, agree and understand that the deadline for my submission of complete pre- employment requirements is on _____, Failure to submit the requirements on the set deadline will result to my removal from training or a disciplinary action.

Below are the requirements (for 201 Folder):

- ____ / Employee Profile Sheet/Personal Information Sheet
- ____ 2 pcs. 2x2 ID picture
- ____ 1 copy of Resume
- ____ 1 photocopy Official Transcript of Records (for graduates) / True Copy of Grades (for undergraduates)
- ____ 2 copies NSO Birth Certificate
- ____ 1 copy Certificate of Employment / Clearance Form from most recent employer
- ____ 2 copies of SSS card / E-1 form
- ____ 1 copy T.I.N. card (Tax Identification Number)
- ____ 1 copy of Philhealth ID and/or MDR (or any form bearing this information)
- ____ 1 copy of Pag-Ibig ID or MDF (or any form bearing this information)
- ____ 1 copy NBI Clearance (Original physical copy)
- ____ 2 copies of NSO Marriage Certificate (if applicable)
- ____ 1 copy Vaccination card

✓

SIGNATURE OVER PRINTED NAME OF TRAINEE / EMPLOYEE

ACCOUNT NAME/DEPARTMENT

✓

DATE SIGNED

Sagility Philippines B.V. Branch Office

(Formerly Betaine (PH) B.V. – Philippines Branch)

15th Floor, Zeta Tower, Bridgetowne West, E Rodriguez Jr. Avenue Corner Ortigas Avenue,
Quezon City, Metro Manila, Philippines, 1110



Addendum to The Employment Contract

Let it be of note that the Training for _____, specifically Foundation Training (FT) and Product Specifics Training (PST), shall be on-site at the designated office premises of BETAINE.

Upon the On-the-Job Training (OJT) phase of employment or Production, the option to work at home shall be given by the Account Management, subject to the performance requirements established. The option to allow work from home shall also depend on government regulations prevailing at the time, in relation to the issuances of the concerned government agencies such as DOLE, DOH, IATF, PEZA, etc.

I, _____, acknowledge the above-mentioned stipulations that I may only
✓ (name)
be eligible for the same as I meet the said expectations herein set.

Conforme: _____
✓ *Signature over Printed Name*

✓ Date: _____



WORK FROM HOME CAPABILITY FORM

✓ FULL NAME: _____

✓ CONTACT NUMBER: _____

Do you own a Desktop or Laptop?	Internet (Y/N)	Internet Speed (how many mbps)	Ping in ms (based on Speed test)	Internet Service Provider	Type of Internet Connection (Fiber/DSL/Broadband/Mobile Data)
✓					

Workspace Requirement

- They must make sure that other people in the home cannot see confidential _____ information at any time.
- They must ensure that household noises cannot be heard as they conduct _____ business by telephone.
 - The phonecall conversations must not be heard by others in the house.
 - Teleworker's computer must be password protected and if they leave the workspace, they should lock their screen or shut down their computer. If company documents or equipment is accessible to others in the household when they are not working, they must be secured in locked file cabinets if possible.
- No papers and Pen and phones or any other computing device is **prohibited** from the workspace

Do you have an Separate Room/workspace fit for a WAH set up? (Y/N)	Is the workspace away from any windows/doors? (Y/N)	Do you have a stable desk fit for a desktop? (Y/N)	Does the workspace have a good ventilation? (Y/N)
✓			

✓ SIGNATURE OVER PRINTED NAME



I hereby acknowledge and affirm that my computer system specifications and work are in adherence to the requirements for which as stated above. If I am unable to comply at this time, I commit and pledge that the same shall be obliged with on or before my endorsement to the production phase of my employment, upon successfully passing for which.

I further state and acknowledge that my inability to do so shall mean my disqualification from employment under Failure to abide by policies and procedures (Work at Home Set Up Requisites) as provided for in the company code of conduct.

Understanding that there is the business need to upgrade my internet wired connectivity, I am committing to ensure that my internet speed will be upgraded to a minimum of 25 mbps on or before I hit production. This is likewise in line with the transitioning to the WAH setup. This is also a pre requisite to the deployment of the assigned desktop.

✓ **SIGNATURE OVER PRINTED NAME**

ACCEPTABLE USE AND INFORMATION CONFIDENTIALITY AGREEMENT

I. Policy Scope

The use of **Sagility Philippines B.V. Branch Office ("Sagility/Company")** information and communications technology ("ICT") and computing facilities, systems and applications including those used in the processing of personal data (please see enumeration below) and other proprietary information assets is a privilege granted only to authorized and responsible users within the Company. Responsible use implies ethical conduct, diligent efforts to protect such resources, and faithful compliance with the law and to the Company's declared and legitimate purpose/s of such use.

This Acceptable Use and Information Confidentiality Agreement is intended to protect, not only the Company, its employees and partners, but also data subjects and individuals outside of the Company whose personal data may be impacted by any damaging action contrary to the responsibilities and obligations set forth herein. It makes clear the consequences for anyone found guilty of mishandling or interfering with the Company's computer-based facilities, systems and applications and/or misusing its information resources contrary to this agreement and its provisions on confidentiality.

II. General Obligations

SAGILITY proprietary information and personal data under its control and custody stored on electronic and computing devices whether owned or leased by SAGILITY, the employee or a third party remain the sole property of SAGILITY. You must ensure through legal or technical means that such proprietary information and personal data are protected at all times as outlined within this document and as required by the Information Security Policy.

1. SAGILITY employees are expected to exercise good judgment in the reasonable use of such assets. Any uncertainty as to the standard of acceptable use of such assets must be resolved through proper consultation and documentation with the appropriate supervisor or manager.
2. All SAGILITY ICT and computing facilities, systems and applications, especially those containing proprietary information and personal data under its control and custody must be used strictly for legitimate SAGILITY business, only upon due authorization and to the extent access to such resources is necessary to the performance of SAGILITY-mandated functions and duties.
3. Only approved technology products must be used. Users of SAGILITY resources shall not install or use any software without approval and guidance from the Company.
4. Personal data under the control and custody of SAGILITY shall not be transmitted over the Internet outside of approved channels and unless properly encrypted according to the Company's standards. Use of personal or free e-mail for such transmissions are absolutely prohibited.
5. Non-company issued mobile and computing devices are prohibited from connecting to any SAGILITY-controlled network or web application and/or from accessing





personal data under its control and custody except where such devices have been approved by the Company and are deemed fully compliant with its data security standards.

6. SAGILITY employees are responsible for reporting any accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, proprietary information and personal data under the Company's control and custody.

III. Unacceptable Use

The following are the activities deemed illegal and would subject the responsible employee, upon due notice and investigation, to suspension, immediate termination or civil/criminal liability:

1. Willful introduction of computer viruses, worms, Trojan horses and similar malicious software into SAGILITY systems;
2. Attempted vandalism of equipment or software such as physical destruction of computer equipment, destruction of cabling and network infrastructures, and destruction and alteration of system files and applications. This also includes denial-of-service (DoS) and similar attacks perpetrated by end-users;
3. Attempts to gain unauthorized access and privileges by defeating network security (hacking), bypassing proxy servers, stealing/sharing network passwords, accessing classified system folders and documents, and exploiting system weaknesses and/or vulnerabilities;
4. Accessing proprietary information and/or personal data under the control and custody of SAGILITY, a server or an account for any purpose other than conducting business;
5. Data espionage through the use of programs such as network sniffers, key loggers, backdoor Trojans, and the like;
6. Unauthorized disclosure, malicious and/or negligent handling of access controls such as account passwords and/or encryption keys;
7. Breach of the intellectual property laws through the use of unlicensed software (software not approved by the appropriate office) and the distribution and use of illegally obtained MP3s, movies and such other media content; and
8. Unauthorized use of all Intellectual Property Rights work done by employees as part of their normal or other duties as owned by the Company. This includes applications such as systems design, program codes, etc. Also, taking proprietary information when the employee disengages from the Company can result in an infringement of the proprietary/copyright law which could result to a criminal liability even if the employee is no longer with the Company.

Any failure to report IT-related security breaches will also be subject to disciplinary actions which may or may not be progressive in nature. An IT-related security breach





can be regarded as a series of illegal activities whose ultimate result is damage to or loss of data from an information system.

IV. Consequences of misuse

Because of its potentially serious consequences to the efficiency, stability and security of SAGILITY ICT and computing facilities, applications and/or systems, and to individual data subjects, any act of data espionage, computer misuse, system penetration and hacking, and failure to report IT related security breaches will be generally regarded as gross acts of misconduct. SAGILITY reserves the right to take necessary and appropriate legal actions which includes suspension or termination of the employee in the case of gross infringement of the present IT Security Guidelines. Violators will immediately be reported to HR whereby the appropriate sanctions will be carried out.

Where hacking is a criminal offence, offenders may also be liable to criminal prosecution. In addition, violation of copyright and intellectual privacy laws can give rise to civil and criminal liability on the part of the infringer as well.

V. Personal Undertaking on Confidentiality of SAGILITY Proprietary Information and Personal Data under its Control and Custody

I recognize that SAGILITY, its related or affiliated entities and their predecessors or successors, are engaged in, among others, the sale of call center, retail management and information and related services to customers worldwide, and that this business necessitates a continuous program of research, marketing and customer solicitation and contact, which may include the collection and processing personal data.

I understand that my association and/or employment with the Company creates in me a duty of trust and confidentiality to the Company, to its Affiliates, and to data subjects with respect to any (a) information related, applicable or useful to the business of the Company; (b) information resulting from tasks assigned to me by the Company; (c) information regarding the particular needs and desires of any of the Company's customers, which may be made known to me by the Company, or by any client or customer of the Company, or learned by me during the period of my association and/or employment; or (d) personal data collected from such data subjects pursuant to declared and legitimate purposes of the Company.

As part of the consideration for my association and/or employment with the Company, and the compensation to be received by me from the Company from time to time, I hereby agree as follows:

1. For purposes of this Agreement, "Proprietary Information" shall mean information generally unavailable to the public that has been created, discovered, developed or otherwise become known to the Company, which information has economic value or potential economic value to the business in which the Company is or will be engaged in. Proprietary Information shall include, but not be limited to, the Company's: trade secrets; strategic plan; marketing and sales reports and forecasts; financial information (such as annual sales, expenses, and gross and net profits); customers, broker and supplier lists and any modifications or enhancements of the same; financial terms or arrangements with customers, brokers or suppliers; training materials; processes; data; know-how; business forms; improvements; discoveries; developments; designs;





techniques; programs and information (whether or not in writing), which have actual or potential economic value to the Company. Without limiting the foregoing, Proprietary Information shall specifically include:

- Potential and actual customers or customer lists;
 - Research about potential or actual customers or customer lists; and
 - Any duplication, reproduction or excerpt in any form whatsoever, of the information contained in such customer research or customer lists.
 - Scope of services delivered to customers
2. For purposes of this Agreement, “Personal Data” shall mean any information whether recorded in a material form or not, from which the identity of an individual is apparent or can be reasonably and directly ascertained by the entity holding the information, or when put together with other information would directly and certainly identify an individual or any information:
- a. About an individual’s race, ethnic origin, marital status, age, color, and religious, philosophical or political affiliations;
 - b. About an individual’s health, education, genetic or sexual life of a person, or to any proceeding for any offense committed or alleged to have been committed by such person, the disposal of such proceedings, or the sentence of any court in such proceedings;
 - c. Issued by government agencies peculiar to an individual which includes, but not limited to, social security numbers, previous or current health records, licenses or its denials, suspension or revocation, and tax returns; and
 - d. Specifically established by an executive order or an act of Congress to be kept classified.
3. At all times, during my association and/or employment with the Company, and after the termination of such association and/or employment, whether the termination is voluntary or involuntary, for any reason or no reason, or by disability, I will keep in strictest confidence and trust all Proprietary Information and Personal Data under SAGILITY’s control and custody; and I will not disclose, use, or induce or assist in the use or disclosure of any such Proprietary Information or Company rights pertaining to such Proprietary Information, including anything related to the same or any Personal Data under the Company’s control and/or custody, without the prior express written consent of the Company.
4. I further agree that at any time after the termination of my association and/or employment with the Company, I will not use the Proprietary Information or Personal Data to contact any of SAGILITY’s customers, clients, or prospects.
5. During and subsequent to the period of my association and/or employment, I agree that, without the prior express written consent of the Company, I will not:
- Disclose to others, use, copy or permit to be copied any Proprietary Information or Personal Data;
 - Remove Proprietary Information or Personal Data from Company premises except in the ordinary course of conducting business for the Company;





- Assert any claim of ownership or other property interest in any Proprietary Information or Personal Data; or
 - Divulge to any person any information, including Personal Data, received during the course of my association and/or employment concerning the business of the Company and its financial condition.
6. Upon termination of my association and/or employment with the Company, I will:
- Immediately deliver to the Company any Proprietary Information or Personal Data, including all reproductions in any format, in my possession or control;
 - Permit the Company to inspect any materials to be removed by me from its premises; and
 - Refrain from any further use whatsoever of such access, security credentials and/or such other privilege that I may have received and/or have been granted by the Company on account of my association and/or employment therewith.
7. During my association and/or employment with the Company, and for a period of six (6) months thereafter, I will not, directly or indirectly, either alone or in concert with others:
- Solicit or attempt to solicit, directly or indirectly, any of the Company's customers, clients, or prospects with respect to call center services or any other line of business in which the Company and the Affiliates were engaged in at the time of termination; or
 - Recruit or attempt to recruit, directly or indirectly, any employee or personnel of the Company and the Affiliates for association and/or employment with any other Company which does business in call center services or any other line of business in which the Company and the Affiliates were engaged in at the time of termination.
8. In the event of the termination of my association and/or employment, I acknowledge that, under certain circumstances, employment with or activities on behalf of a competitor of the Company would inherently call upon me to reveal Proprietary Information, to which I had access or learned during my association and/or employment, in order to fulfill my duties or obligations to the competitor. Thus, during the 6-month period following termination of my association and/or employment with the Company, I will not accept any such employment or engage in any such activities which would require me to use or disclose Proprietary Information.
9. I represent that I have not entered into, and I agree that I will not enter into, any agreement, either written or oral, in conflict with the terms of this Agreement. I also understand that in my service to the Company, I am not to breach any obligation of confidentiality that I have to former employers, and I have fulfilled all such obligations during my association and/or employment.
10. I acknowledge that irreparable injury will result to the Company and the Affiliates from my violation or continued violation of the terms of this Agreement, and I expressly agree





that the Company and the Affiliates shall be entitled, in addition to damages and any other remedies provided by law, to an injunction or other equitable remedy respecting such violation or continued violation by me.

11. I acknowledge that in the event of my violation of this agreement, I may be subject to legal, civil, criminal and/or administrative action; and understand that I may be held liable for costs, damages and/or fees.
12. If any provision of this Agreement is held to be unenforceable for any reason, that provision shall be ineffective only to the extent of such unenforceability and shall not invalidate or otherwise render ineffective any other provision of this Agreement.
13. No implied waiver by the Company or the Affiliates of any provision in this Agreement shall arise in the absence of a waiver in writing signed by the Company or the Affiliates, and no waiver by the Company or the Affiliates with respect to a specific circumstance, event or occasion shall be construed as a continuing waiver as to similar circumstances, events or occasions.
14. Any violation of the provisions and/or covenants stipulated in this Agreement shall entitle the Company to claim for liquidated damages in the amount of One Hundred Thousand Pesos (PhP100,000.00) or actual and/or compensatory damages that may be incurred by the Company.
15. If any provision of this Agreement is unenforceable or invalid under any applicable law or is so held by applicable court decision, such unenforceability or invalidity shall not render this Contract unenforceable or invalid as a whole. In such event, such provision shall be changed and interpreted so as to best accomplish the objectives of the parties within the limits of applicable law or court decisions.
16. This Agreement contains the sole and entire agreement and understanding between the Company and myself with respect to its subject matter, and supersedes and replaces any prior agreement to the extent any such agreement is inconsistent with the terms of this Agreement.
17. This Agreement can be amended, modified, released or changed, whole or in part, only by a written agreement signed by the Company and myself.
18. This Agreement shall be binding upon me, my heirs, executors, assigns and administrators, and shall inure to the benefit of the Company and the Affiliates, and their successors or assigns.

I confirm that I have read and fully understood the above-mentioned policies and guidelines. I am fully aware that illegal use of IT facilities and applications will result to a disciplinary action (including termination) and/or civil/criminal liability.

Full Name of the employee: _____

Signature: _____

Date: _____

TELEWORKING TERMS AND CONDITIONS

I, _____, the undersigned, agree to perform my services as an Employee of SAGILITY under the following terms and conditions for any period I agree to be placed under a Teleworking/Work at Home (WAH) arrangement during the term of employment, and in consideration of the covenants stipulated herein, hereby voluntarily agree to perform, comply, and undertake the following:

I. TELEWORKING/WORK FROM HOME ARRANGEMENT

During the period under any WAH arrangement, the undersigned shall be permitted to perform his/her scope of work in a SAGILITY-approved WAH workspace located at a SAGILITY approved location outside of SAGILITY premises. During this period, the undersigned shall be granted remote access to Client/SAGILITY systems, networks, and online resources using SAGILITY-assigned desktops, laptops, devices, and network equipment strictly under the terms and conditions herein provided.

II. SCOPE OF TELEWORKING CONSENT AND UNDERTAKING

This document enumerates the obligations, warranties and representations binding the undersigned during any period during his/her employment wherein a WAH arrangement is in effect. The terms of this document shall be supplemental to all existing and applicable SAGILITY policies, rules and procedures including the Company's Employee Code of Conduct, and those relating to information confidentiality, data privacy and security.

SAGILITY maintains the right to amend and/or modify this document to conform to any future changes to, and developments in, the undersigned's scope of work under an applicable WAH arrangement and due to business necessity, subject to sufficient notice and, where applicable, consent.

III. OBLIGATIONS OF UNDERSIGNED

The undersigned agrees to comply and abide by his/her obligations under this Section during any period wherein a WAH arrangement is in effect. Specifically, the undersigned shall:

- i. Regularly log into his/her SAGILITY-assigned desktop, laptop, device and/or system in accordance with his/her documented scope of work/job/role and shift schedule as specified by his/her reporting manager or designee.
- ii. Strictly access/use his/her SAGILITY-assigned desktop, laptop, device and/or system only in relation to his/her documented scope of work/job/role, within the SAGILITY





approved WAH workspace, and in accordance with all existing and applicable SAGILITY policies, rules and procedures including the Company's Employee Code of Conduct and those relating to data privacy and security. As such, the undersigned shall not access/use any unauthorized websites, applications, software, equipment, or tools in relation to the aforementioned resources.

iii. Exercise utmost care, caution and due diligence in the use of his/her SAGILITY assigned desktop, laptop, device and/or system while the same are in his/her custody;

iv. Prohibit unauthorized persons, including immediate family members, relatives, friends, visitors and other non-SAGILITY personnel from entering the SAGILITY approved workspace and/or viewing/using/accessing his/her SAGILITY-assigned desktop, laptop, device and/or system, whether directly or indirectly and whether during work hours or otherwise.

v. Not use any mobile device or phone or any other electronic/magnetic/optical device with recording/photographic capabilities during his/her work shift, especially while he/she is accessing/using his/her SAGILITY-assigned desktop, laptop, device and/or system.

vi. Not bring his/her SAGILITY assigned desktop, laptop, device and/or system to any location other than the SAGILITY-approved WAH workspace;

vii. Not record, copy, reproduce, disclose, transmit, use or process, in any form, including digital recording or handwritten notation, any information, including client customer account information such as SSN, Credit Card Numbers, or personal data and/or confidential and proprietary information of SAGILITY for purposes outside of his/her documented scope of work/job/role during the entire course of the WAH arrangement.

viii. Protect his/her SAGILITY-assigned desktop, laptop, device and/or system and any information, records and/or materials under his/her access, control and/or custody by reason of his/her documented scope of work/job/role during the WAH arrangement from any unauthorized or accidental access, use, modification, destruction, or disclosure regardless of the media through which such access, control and/or custody is exercised, the locations thereof, or the systems and/or processes used in the performance thereof;

ix. Immediately notify his/her reporting manager/technical Single Point of Contact of any failure or malfunction of his/her SAGILITY-assigned desktop, laptop, device and/or system; any unauthorized access to such resources, information, records and/or materials under his/her access, control and/or custody by reason of his/her documented scope of work/job/role during the WAH arrangement; and any security incident affecting the confidentiality, availability and integrity of such information assets, including personal data;





x. Join the patching bridge on a monthly basis for IT to install required system updates to ensure security of the device. Major upgrades/ maintenance may be required to the machine which would require the undersigned to bring the computer to the office for system upgrade/ maintenance.

xi. Immediately return to the Company his/her SAGILITY-assigned desktop, laptop, device and/or system upon completion of the WAH arrangement and/or separation from the company.

xii. As agreed upon in **Section IV** of this document, he/she will take accountability and possible salary deduction in case the equipment is lost or damaged and is caused by his/her fault or negligence. Upon separation from Sagility, the employee is expected to return his/her assets on site. The severed employee has the option to personally drop-off the issued equipment back to the site or request for the company to pick-up the issued equipment, except for unserviceable areas. For those in unserviceable areas, the severed employee agrees to return or ship back the equipment at his/her own cost. Failure to return or surrender the equipment will cause Sagility to file the applicable criminal charges if the value of the equipment cannot be covered by the Final Pay of the severed employee.

xiii. Fully comply and abide by all obligations, warranties and representations contained herein as well as all WAH and other applicable policies, rules and procedures including the Company's Employee Code of Conduct, and those relating to information confidentiality, data privacy and security.

IV. EMPLOYEE'S CONFORMITY

- i. That in case the equipment issued to the undersigned is lost or damaged due to the fault or negligence of the employee, or upon failure to return said equipment after demand, he/she hereby authorizes and gives his/her consent to SAGILITY to deduct from his/her salary the value of the lost equipment or the value of the damage caused.
- ii. That upon his/her separation from SAGILITY, the undersigned authorizes and consents to deductions on his/her final pay the value of the unreturned equipment.

V. WARRANTIES AND REPRESENTATIONS

The undersigned warrants and represents that:

- i. He/she is aware that his/her SAGILITY assigned desktop, laptop, device, system and/or SAGILITY-approved WAH workspace are subject to monitoring. In the event of any deviation from or breach to the terms of this document and all





WAH and other applicable policies, rules and procedures, for which he/she may be subject to disciplinary action.

- ii. He/she shall permit any duly authorized SAGILITY representative to physically visit/inspect the SAGILITY-approved WAH workspace anytime during his/her scheduled work hours to ensure the proper performance of his/her work under the WAH arrangement, including but not limited to the maintenance of his/her SAGILITY assigned desktop, laptop, device and/or system or the audit of his/her work area. Entry into the WAH premises includes physical access to the said area or through the use of webcam facilities, Closed Circuit Television (CCTV) Cameras and use of virtual/remote desktop viewing/monitoring by authorized SAGILITY personnel.
- iii. In the implementation of the above remote monitoring facilities, he/she fully understands and agrees to the following:
 - 1. SAGILITY's use of an Information Security/Data Protection Tool which will allow the Company to have remote and real time access to SAGILITY-assigned desktops, laptops, devices and/or systems.
 - 2. This Information Security/Data Protection Tool has capabilities for audio and video monitoring and recording of the undersigned's services for the Company during working hours and at the SAGILITY approved WAH workspace, including:
 - a. Automated facial authentication, agent expression and attentiveness detection
 - b. Automated mobile camera detection
 - c. Automated detection of unauthorized persons during work hours and at the SAGILITY-approved WAH workspace
 - d. Automated detection of unauthorized obstruction to video monitoring devices
 - 3. The automated detection capabilities of the Information Security/Data Protection Tool are only to intended to capture imagery of possible/suspected violations to the terms of this document and to applicable SAGILITY policies, rules, and procedures, specifically those relating to information confidentiality, data protection and security. Any activity flagged by the Information Security/Data Protection Tool shall be cause for the Company to conduct further investigation subject to SAGILITY's disciplinary procedures and the requirements of due process. At no instance shall the Information Security/Data Protection Tool findings constitute an immediate attribution of fault or liability. Likewise, employees



subject to any investigation hereunder shall be provided access to any captured imagery and be given an opportunity to dispute the same.

4. As a result of its functions, the Information Security/Data Protection Tool may inadvertently capture the imagery of the undersigned's family members, friends or visitors, should they be allowed to enter the SAGILITY-approved WAH workspace in violation of the terms of this document. While SAGILITY shall use its best efforts to ensure that the said tool is implemented only to promote security and safety of Information and data accessed by the undersigned and for the purposes of evaluation of the latter's productivity as an employee, he/she acknowledges his/her responsibility to:
 - a. Inform his/her family members, friends, or visitors of the restrictions from and implications of entering into the SAGILITY approved WAH workspace, including the possible capture of their image and likeness by the Information Security/Data Protection Tool and the purpose for the processing thereof; and
 - b. Ensure that no unauthorized person enters the SAGILITY-approved WAH workspace.
 5. SAGILITY shall ensure that any personal data captured by the Information Security/Data Protection Tool is only retained for a limited period or until the lawful and legitimate purpose of the processing, as explained in this document, is achieved.
 6. The undersigned has received a demonstration of the functionality of the Information Security/Data Protection Tool with remote audio and video monitoring capabilities in real time and understands the applications and functionalities covered by this Tool.
- iv. He/she agrees to comply/abide by the terms contained hereof during any period during his/her employment wherein a WAH arrangement is in effect.





v. By signing this consent form, the undersigned hereby declares, consents to & confirms that:

1. He/she has read, understood, and agreed to abide by and be bound to the terms, warranties and representations contained in this document as well as the applicable SAGILITY policies, rules and procedures.
2. He/she is aware that any violations to the SAGILITY policies would result in disciplinary action that range up to termination of employment and/or legal action.

✓	Full Name of the employee:	_____
✓	Employee Number:	_____
✓	Contact Number:	_____
✓	Account:	_____
✓	Signature:	_____
✓	Date:	_____



EMPLOYEE PRIVACY NOTICE AND CONSENT FORM

I. Introduction

As a globally recognized and preferred business process transformation partner to both local and foreign clients, Sagility Philippines B.V. Branch Office ("Sagility/Company") commits itself to the lawful and fair treatment of our employees' individual privacy rights. This Privacy Notice and Consent Form ("PNCF") reflects SAGILITY's commitment to ensure that all employees, as data subjects, are adequately informed of the organization's processing activities with respect to their personal information and sensitive personal information (collectively, "personal data"), including their collection, use, storage, disclosure, and disposal. We endeavor to obtain your informed consent to continue processing your personal data strictly within the scope and purpose stated herein as well as in accordance with Republic Act No. 10173, or otherwise known as the Data Privacy Act of 2012 ("Data Privacy Act"), its corresponding Implementing Rules and Procedures ("IRR"), and the existing Memorandum Circulars and Advisories issued by the National Privacy Commission ("NPC").

Specifically, the PNCF, serves to inform you of the following:

- a) The categories of employee personal information we collect and the processes involved;
- b) The scope, source, and method of our personal information processing activities with respect to employee information;
- c) The purpose for such processing, the legitimate interests of the organization involved in, and the lawful basis of said processing;
- d) Who are the intended recipients of employee personal information;
- e) How long we retain employee personal information and the purpose of said retention;
- f) Your rights as data subjects who own and control the personal information being processed;

II. Collection and Use of Personal Information

A. Categories of Personal Information Processed

SAGILITY collects, generates, processes and/or maintains both personal and sensitive personal information about you as defined under Section 3, paragraphs (g) and (l) respectively, including the following:

Personal Information	Sensitive Personal Information
1. Employee's Full Name	1. Civil Status
2. Permanent Address	2. Place of Marriage
3. Address history	3. Date of Marriage
4. Gender	4. Birthdate
	5. Nationality





5. Electronic Mail Address
6. Contact Information
7. Employee Social Media Account Information
8. Employment Information including Position, Date of Hire, Certification, Regularization, and SAGILITY assigned Employee Number, Salary, Site Location/Assignment, Employee Contracts with SAGILITY and other company-generated documents on employees
9. Language Proficiency
10. Employee Compensation and Financial Information including Loans, Payroll Reports, Confidential Pay Slips, Bank Accounts, and Bank Advice Reports, Deduction and Earning Registers.
11. Closed-Circuit Television ("CCTV") Surveillance Videos of SAGILITY Workstations and Operations Areas
12. Professional Membership Details
13. Signature
14. Background Checks:
 - a) Address Verifications
 - b) Previous Employment History
 - c) Supervisor Performance Feedback
 - d) Character Reference
15. Employee 201 Records including the Following Details: Separation Date, Reason for Separation, Separation Type, Movements/Promotions, Infractions, Disciplinary/Resignation Letter
16. Family Information Including Full Name, Home Address, Relationship, Contact Details, and Occupation
17. Emergency Contact Information including Full Name, Relationship, Contact Number, E-mail, Home Address
6. Religion
7. Place of Birth
8. Passport Details
9. Educational Attainment/Background including Transcripts and Diploma
10. Results of IQ and Grammar Testing
11. Training Records and Reports, including Scorecards, Quiz Books, Development Trackers
12. Interview Results
13. Pre-Employment Medical Records and Health Screening Results, Annual Medical Exam Results, Diagnosis, and Medical Recommendation from Medical Certificates issued by On-site SAGILITY Clinic, Medical Complaints Raised by Employees, Drug Screening Results
14. Philippines Registered Nurse License Number
15. United States Registered Nurse License
16. Background Checks
 - a) Highest Educational Attainment
 - b) Prior Civil and Criminal Litigation Records
 - c) Pending Blotters
17. Government Identification and Information, Records, and Reports including National Bureau of Investigation (NBI) Clearance Forms; Social Security System (SSS) numbers, monthly contribution reports, and monthly loan reports; Tax Identification numbers (TIN), Bureau of Internal Revenue gross and tax reports, Community Tax Certificate Nos. and other forms; Philippine Health Insurance Corporation ("PhilHealth") numbers, monthly collection reports, quarterly remittance reports, and employee-member reports; Home Development Mutual Fund ("Pag-IBIG") numbers, monthly premium reports and loans reports, Community Tax Certificates, Police Clearances, and other related government-issued information.



18. Family Information Including Birthdate, Gender, Blood Group, and Other Medical or Hospitalization Documents

B. Purpose, Scope, and Method of Personal Data Collection and Processing

SAGILITY collects and processes the above-mentioned personal data **primarily for human resource management and development**, including the following:

1. Identity verification and entry into the organization's Resource Management System;
2. Pre-qualification and post-qualification assessment, including negative records checks and background validation;
3. Employee discipline management, movement and progression documentation;
4. Development of wellness, incentives and benefits programs that help monitor and enhance employee performance, productivity, and overall health and wellness;
5. Internal communications with employees for work and emergency purposes and absence verification;
6. Company announcements, greetings and similar celebratory salutations in relation to employee's birthday, and similar life events;
7. Processing of employment compensation and corporate benefits, including but not limited to payroll and loan management, flexible benefit management, Health Maintenance Organization ("HMO") coverage and enrollment; and Group Life/Accident Insurance;
8. Review, development, and implementation of employee benefits, perks, programs, and engagement activities;
9. Determination of employees' fitness and on-site medical management in applicable and appropriate cases;
10. Development and implementation of employee learning and training programs, including performance testing and benchmarking, foreign language and oral speaking assessments;
11. Registration/enrollment to external training providers;
12. Issuance of company identification and access cards;
13. Implementation of employee login credentials for the organization's IT and communications network;
14. Maintenance of onsite and remote access security to the organization's network and/or facilities;
15. Compliance with government and regulatory requirements such as Bureau of Internal Revenue ("BIR"), Department of Labor and Employment ("DOLE"), SSS, PhilHealth, Pag-IBIG reportorial requirements, business, occupational permits, licenses, and other National Government and Local Government Unit (LGU) compliance requirements;
16. Incident verification and reporting process involving employees as contractually required by SAGILITY clientele;
17. Disclosure to our Corporate Social Responsibility ("CSR") management providers for the purposes of extending to you, opportunities to participate with the organization's CSR initiatives and/or campaigns.





18. For the protection of lawful rights and interests of the organization in internal quasi-judicial and judicial proceedings, or the establishment, exercise or defense of legal claims against prospectively malfeasant employees.
19. Periodic 2nd and 3rd party audits and risk assessments of SAGILITY's processes and practices which may impact its employees.

We collect both electronic and physical copies of the abovementioned personal data from the following sources: a) **directly** from employees and job applicants through i) their curriculum vitae, personal data sheets, submitted medical records and government documents, and interview and training assessment results conducted by authorized personnel and ii) pre-employment health and drug test screening services conducted by our authorized third-party health service provider; and b) **indirectly** from third parties through the verification efforts of third-party employee background/screening service providers. However, SAGILITY may also generate/prepare/produce secondary/derivative documents/records/material containing the above personal data from our processing activities, but in relation to supporting the above-mentioned purposes.

Both electronic and physical copies of the personal data collected and processed are consolidated and stored in data centers located locally or in foreign territories. Electronically processed and stored personal data are encoded into our proprietary information technology systems to facilitate the storage thereof and to ensure our employees and their access to/privileges in other SAGILITY systems are adequately recognized and properly delimited. These data centers and systems are covered by appropriate physical, technical and organizational measures in compliance with the requirements of the Data Privacy Act, its IRR, and the existing Memorandum Circulars and Advisories issued by the NPC to ensure that: a) they remain secure while in our custody and accessible only by authorized personnel and under secure processes; and b) that the use of the said information remains proportional and limited to the legitimate purposes specified above.

C. Recipients of Personal Data

i. Internal Personnel

In the collection and processing of personal data, only authorized personnel from the following groups are allowed access thereto: L&D Operations, Operations Training Team, Compliance Officers, Human Resource Compensation and Benefits ("HRCB"), Information Technology ("IT"), Building Administration and Engineering Department ("BAED"), Business Excellence – Audit and Certification ("BE-AUC"), HR Recruitment ("HRR"), HR – Business Partners ("HRBP"), and **all other groups that company may deem necessary to be allowed access to such information in the legitimate exercise of their functions** and only for the purposes enumerated above. These personnel are authorized specific to their function and in accordance with the procedures for application and approval established by the Office of the Data Protection Officer (DPO) of SAGILITY. Additional access provided to personnel not mentioned herein may be provided on a case to case basis only upon approval by the Office of the DPO and in consonance with the purposes enumerated above.

ii. Third Parties





We do not share or disclose your personal data to third parties unless it is directly related to the purposes outlined above; we are legally required to do so; or in the event that such action is necessary to protect, defend and/or enforce our rights, property or the personal safety of our employees and other individuals.

a. Personal Information Processors

SAGILITY engages the services of the following Personal Information Processors for the following purposes:

- Pre-employment health and drug test screening service providers to conduct employee medical evaluations;
- Employee background/screening service providers to conduct performance testing/benchmarking, and foreign language and oral speaking assessments; verify the information provided to us by employees; and/or collect additional background checks on a prospective employee for qualification assessment activities.
- Third-party payroll processing agents to ensure timely and proper compensation as well as compliance with existing employment regulations.
- Third-party service providers who process occupational permits and all other business requirements for both national and local government regulation compliance.
- Third-party providers who develop and maintain our platform which allow us to develop wellness, incentives and benefits programs that help monitor and enhance employee performance, productivity and overall health and wellness.

We understand that under such arrangements, SAGILITY remains the Personal Information Controller responsible over the information obtained on our behalf by and/or disclosed to such third parties. Nevertheless, we will ensure that any third party to whom such functions are outsourced, as Personal Information Processors, are contractually obligated to comply with the requirements of the Data Privacy Act, its IRR, and the existing Memorandum Circulars and Advisories issued by the NPC. You may request for additional information on the identities of these parties from the Office of the Data Protection Officer.

b. Personal Information Controllers

SAGILITY shares or discloses your personal data to the following Personal Information Controllers for the following purposes:

- Clients to whom SAGILITY is contractually obligated to share employee personal data for the following purposes: client systems/tools/applications access provisioning and termination for assigned employees, incident verification and investigation reports involving malfeasant employees.
- Partner companies who provide certain benefit options such as gas cards, ride application discounts and the availment of external benefits management for purposes of verifying your employment with SAGILITY and providing you with company benefits.



- Health Maintenance Organizations and Group Life/Accident Insurance Providers who, in turn, further share your data to external auditors/counsels and third-party services providers who are directly involved in the provision of such coverage.
- Government regulatory agencies including, but not limited to the SSS, PhilHealth, Pag-IBIG, DOLE, and the BIR in accordance with reportorial requirements established by law.
- Partner Corporate Social Responsibility (“CSR”) management providers for the purposes of extending to you, opportunities to participate with the organization’s CSR initiatives and/or campaigns.
- Second-Party and Third-Party Auditors for purposes of assessing existing risks and gaps in the organization’s processes which may impact our employees.

These instances, where appropriate, will be covered by appropriate contractual and/or data sharing agreements in accordance with the requirements of the Data Privacy Act, its IRR, and the existing Memorandum Circulars and Advisories issued by the NPC.

c. Changes in Third-Party Engagements

Because we change providers and partners from time to time in order to maximize the benefits that we can extend to you as well as to seek higher service quality, we seek your clear, unequivocal and express instruction and/or authorization to share your data to the appropriate third-party whenever we change service providers and/or engage new third parties in the provision of additional benefits to you. Rest assured that you will be appropriately informed of any such changes and/or additions.

III. Personal Data Retention and Disposal

Your personal data will only be retained only for as long as is necessary for the fulfillment of the declared, specified, and legitimate purposes provided above, or when the processing is relevant to the purpose, strictly in accordance with our records retention policy. After which, personal data shall be disposed or discarded in a secure manner that would prevent further processing, unauthorized access, or disclosure to any other party or the public, or prejudice the interests of the data subjects.

IV. Your Rights as a Data Subject

1. **The Right to be Informed** – This PNCF honors your right to be informed of whether personal data pertaining to you will be, are being, or were processed, including its disclosure to third parties, if any.
2. **The Right to Object** - You have the right to object to the sharing of your information. Should there be any changes in the information provided to you in this PNCF, you should be informed of such changes and your consent thereto obtained before such changes are implemented.
3. **The Right to Withdraw Consent Anytime** - You have the right to withdraw your consent to this PNCF anytime. However, for purposes of security, the legitimate interests of the organization, compliance to existing laws and regulations, and the protection, defense and/or enforcement of our rights, property or the personal safety of our employees and other individuals, SAGILITY





reserves the right to continue processing your personal data. SAGILITY also further reserves the right to review your employment with the organization should your refusal to give consent to relevant information result in SAGILITY being unable to effectively render its duties and responsibilities as an employer.

4. **The Right to Access, Rectification, Erasure and/or Blocking** - You have the right to request for a copy of any personal data we hold about you, including the sources from which such information was collected and to whom the same is shared, if any. You have the right to have it corrected or revised if you think it is inaccurate or incomplete, subject to the submission of sufficient proof establishing the same. You have the right to suspend, withdraw or order the blocking, removal or destruction of your personal data should you a) discover that it is incomplete, outdated, false, unlawfully obtained, used for an unauthorized purpose, no longer necessary for the abovementioned purposes; b) withdraw your consent thereto; or c) discover violations of your right as a data subject.
5. **The Right to Damages** - You have the right to be indemnified for any damages sustained due to any violations of your rights as a data subject.

V. Contact Us

If you have any questions, concerns, objections about this PNCF, and our personal data processing activities please contact us through the following:

Data Privacy Officer	
E-mail	phdpo@sagilityhealth.com
Office Address	11th Floor, Sagility Philippines B.V. Branch Office, Zeta Tower, E.Rodriguez Jr. Avenue Corner Ortigas Avenue, Bridgetowne West Ugong Norte 1110, Quezon City, Metro Manila, Philippines





VI. Conformity

This PNCf, with your written conformity below, serves as an indication that you have been fully informed of SAGILITY's employee personal data processing activities, that you completely understand the terms thereof, and that you freely consent thereto and that you acknowledge the attached disciplinary actions for any breach or violation of the policy to secure and protect it. Furthermore, you hereby acknowledge that you take full and sole responsibility over the truthfulness, accuracy, and completeness of the personal data you provide and undertake to immediately notify the company of any change or modification thereto. In instances where such information you share may include the personal data of other data subjects, you warrant that you have lawfully obtained the consent of said data subjects to disclose/share their personal data with SAGILITY.

Full Name of the employee: _____

Signature: _____

Date: _____



RECRUITMENT NOTICE AND CONSENT FORM

I. Introduction

This Recruitment Notice and Consent Form (“RNCF”) reflects Sagility Philippines B.V. Branch Office (“Sagility/Company”) commitment to ensure that all applicants for employment through SAGILITY’s Recruitment Management System (“RMS”) Portal, as data subjects, are adequately informed of the purpose, scope and extent of the organization’s processing activities with respect to your personal data. Furthermore, we endeavor to obtain your informed consent to continue processing your personal data for purposes of placement within SAGILITY in accordance with Republic Act No. 10173, otherwise known as the Data Privacy Act of 2012 (“Data Privacy Act”), its corresponding Implementing Rules and Procedures (“IRR”), and the existing Memorandum Circulars and Advisories issued by the National Privacy Commission (“NPC”).

II. Collection and Use of Personal Information

A. Scope, Purpose and Extent of Personal Data Processing

Personal Information, in general, refers to any information, whether recorded in a material form or not, from which the identity of an individual is apparent or can be reasonably and directly ascertained by the entity holding the information, or when put together with other information would directly and certainly identify an individual. On the other hand, *Sensitive Personal Information* refers to personal information:

- (a) About an individual’s race, ethnic origin, marital status, age, color, and religious, philosophical or political affiliations;
- (b) About an individual’s health, education, genetic or sexual life of a person, or to any proceeding for any offense committed or alleged to have been committed by such person, the disposal of such proceedings, or the sentence of any court in such proceedings;
- (c) Issued by government agencies peculiar to an individual which includes, but not limited to, social security numbers, previous or current health records, licenses or its denials, suspension or revocation, and tax returns; and
- (d) Specifically established by an executive order or an act of Congress to be kept classified.

SAGILITY collects and processes both personal and sensitive personal information through its RMS Portal. Such personal data includes, among others, personal details, contact information, prior employment information, and citizenship. SAGILITY collects such personal data directly from you for the purpose of reviewing and assessing your qualifications for employment.

In the collection and processing of your personal data, only authorized personnel from SAGILITY Human Resource and Recruitment Offices are allowed access thereto and only for the purposes enumerated above. These personnel are authorized specific to their function and in accordance to the procedures for application and approval established by the Office of the Data Protection Officer (DPO) of SAGILITY. Additional access provided to personnel not belonging to the aforementioned offices may be





provided on a case to case basis only upon approval by the Office of the DPO and in consonance with the purposes enumerated above.

Your personal data will be securely stored in SAGILITY data centers covered by appropriate physical, technical and organizational measures in compliance with the requirements of the Data Privacy Act, its IRR, and the existing Memorandum Circulars and Advisories issued by the NPC to ensure that: a) they remain secure while in our custody and accessible only by authorized personnel and under secure processes; and b) that the use of the said information remains proportional and limited to the legitimate purposes specified above.

III. Personal Data Retention and Disposal

Your personal information will only be retained only for as long as is necessary for the fulfillment of the declared, specified, and legitimate purposes provided above, or when the processing is relevant to the purpose. After which, personal data shall be disposed or discarded in a secure manner that would prevent further processing, unauthorized access, or disclosure to any other party or the public, or prejudice the interests of the data subjects.

IV. Your Rights as a Data Subject

1. **The Right to be Informed** – This RNCF honors your right to be informed of whether personal information pertaining to you will be, are being, or were processed, including its disclosure to third parties, if any. As you will see above, we endeavored: i) to provide you with a description of the personal information we collect and process pursuant to purposes enumerated above; ii) to obtain your consent; iii) to explain the scope and method of the collection and sharing; and iv) the recipients of the personal information collected and shared.
2. **The Right to Object** - You have the right to subsequently object to the processing of your data. However, this may adversely affect your employment opportunity with SAGILITY since the same are necessary for purposes of reviewing and assessing your qualifications. Should there be any changes in the information provided to you in this RNCF, you should be informed of such changes and your consent thereto obtained before such changes are implemented.
3. **The Right to Withdraw Consent Anytime** - You have the right to withdraw your consent to this RNCF anytime. However, for the same reason, this may adversely affect your employment opportunity with SAGILITY. Likewise, your subsequent withdrawal of consent will not retroactively hold SAGILITY liable for any disclosures made on previously given consent.
4. **The Right to Access, Erasure and/or Blocking** - You have the right to request for a copy of any personal data we hold about you, including the sources from which such information was collected and to whom the same is shared. You have the right to have it corrected or revised if you think it is inaccurate or incomplete, subject to the submission of sufficient proof establishing the same. You have the right to suspend, withdraw or order the blocking, removal or destruction of your personal information should you a) discover that it is incomplete, outdated, false, unlawfully obtained, used for an unauthorized purpose, no longer necessary for the





abovementioned purposes; b) withdraw your consent thereto; or c) discover violations of your right as a data subject.

5. **The Right to Damages** - You have the right to be indemnified for any damages sustained due to any violations of your rights as a data subject.

V. Contact Us

If you have any questions, concerns, objections about this RNCF, and our personal information processing activities please contact us through the following:

Data Privacy Officer	
E-mail	phdpo@sagilityhealth.com
Office Address	11th Floor, Sagility Philippines B.V. Branch Office, Zeta Tower, E.Rodriguez Jr. Avenue Corner Ortigas Avenue, Bridgetowne West Ugong Norte 1110, Quezon City, Metro Manila, Philippines

VI. Conformity

By clicking “Accept and Proceed” hereto, you hereby acknowledge that you have been fully informed and understand all of the terms and conditions of SAGILITY’s personal information processing activities and that you have freely and voluntarily expressed your consent and conformity thereto.

Authority to Retain Data for Future Placement

By clicking “I agree” hereto, in the event that my original application does not result in my employment, I hereby expressly request and authorize Sagility Philippines B.V. Branch Office (“Sagility/Company”) to retain my profile in its recruitment database for future consideration in new employment opportunities that may arise within the organization.



Policy For Biometric Information Privacy

Introduction

Sagility Operations Inc., its parent companies, affiliates, and subsidiaries; and its employees, agents, contractors, vendors, officers, and board members (the "Company" or "Sagility") are guided by its company values. These values are the foundation of how it conducts itself and interacts with each other, its clients, suppliers, investors, and other stakeholders. The Company is committed to ensuring corporate compliance and promoting an ethical corporate culture by observing the highest standards of fair dealing, honesty, and integrity in its business activities.

Policy Statement

Sagility its employees, agents, contractors, vendors, officers, and board members (the "Company"/ "Sagility") may collect certain biometric data from employees and contractors. This policy explains what information the Company may collect, how this information may be used, how it is stored, safeguarded, retained, and disposed of.

The Company may utilize biometric technology software installed on Company electronic devices for monitoring of Company computers, to monitor remote employee work, for employee identification to ensure security of sensitive information, confidential data, fraud prevention, integrity, and compliance while work is being performed by employees or contractors on behalf of the Company.

Pursuant to the possible use of the biometric technology, the Company has instituted the following biometric information privacy policy.

Scope and Applicability

This Policy applies to any person who is, or has been, any of the following with respect to the Company: employee, officer, director, contractor (including sub-contractors and employees of contractors), supplier (including employees of suppliers), consultant, auditor, associate, and any other visitors or public who expose biometric data to Sagility IT infrastructure and applications either owned or outsourced. This Policy is intended to apply to the above persons in all countries in which the Company operates a business.

Biometric Data Defined

"Biometric data" means personal information stored by the Company regarding an individual's physical characteristics that can be used to identify a person, such as fingerprints, voiceprints, facial shape, or scan of hand or face geometry and as defined by applicable State and local laws. Biometric data includes "biometric identifiers" and "biometric information" and as defined by applicable state or local laws.

"Biometric identifier" means a retina or iris scan, fingerprint, voiceprint, or scan of hand or face geometry and as defined by applicable State and local laws. Biometric identifiers do not include writing samples, written signatures, photographs, human biological samples used for valid scientific testing or screening, demographic data, tattoo descriptions, or physical descriptions such as height, weight, hair color, or eye color. Biometric identifiers do not include information captured from a patient in a health care setting or information collected, used, or stored for health care treatment, payment, or operations under the federal Health Insurance Portability and Accountability Act of 1996.



"Biometric information" means any information, regardless of how it is captured, converted, stored, or shared based on an individual's biometric identifier used to identify an individual and as defined by State and local laws. Biometric information does not include information derived from items or procedures excluded under the definition of biometric identifiers.

Purpose for Collection of Biometric Data

The Company, its vendors, and/or the licensor of the Company's biometric technology software (hereinafter "Biometric Software") may collect, store, and use facial shapes, a scan of face geometry, or fingerprint data to monitor Company computers, to monitor remote employee work, for employee identification to ensure security of sensitive information and confidential data, fraud prevention, integrity and compliance while work is being performed by employees or contractors on behalf of the Company.

The Company, its vendors, and/or the licensor of the Company's Biometric Software will not sell, lease, trade, or otherwise profit from employees or contractors' biometric data; provided, however, the Company's vendors and the licensor of the Company's Biometric Software may be paid for products or services used by the Company that utilize such biometric data

Authorization

To the extent that the Company, its vendors, and/or the licensor of the Company's Biometric Software collect, capture, or otherwise obtain biometric data relating to an employee or contractor, the Company has published this Policy and has accordingly:

- Informed the employee or contractor in writing that the Company, its vendors, and/or the licensor of the Company's Biometric Software are collecting, capturing, or otherwise obtaining the employee or contractor's biometric data, and that the Company is providing such biometric data to its vendors and the licensor of the Company's Biometric Software.
- Informed the employee or contractor in writing of the specific purpose and length of time for which the employee or contractor's biometric data is being collected, stored, and used; and
- Will receive a written release/acknowledgment and consent signed by the employee or contractor (or his or her legally authorized representative) authorizing the Company, its vendors, and/or the licensor of the Company's Biometric Software to collect, store, and use the employee or contractor's biometric data for the specific purposes identified and disclosed by the Company in this Policy, and for the Company to provide such biometric data to its vendors and the licensor of the Company's Biometric Software.

Disclosure

The Company stores all biometric data in accordance with applicable standards and laws. The Company will not sell, lease, trade, or otherwise profit from an employee or contractor's biometric data.

The Company will not disclose or disseminate any biometric data to anyone other than its vendors and the licensor of the Company's Biometric Software providing products and services using biometric data without/unless:

- First obtaining written employee or contractor consent to such disclosure or dissemination (See Attached Acknowledgment Form);



- The disclosed data completes a financial transaction requested or authorized by the employee or contractor;
- Disclosure is required by state or federal law or municipal ordinance; or
- Disclosure is required pursuant to a valid warrant or subpoena issued by a court of competent jurisdiction.

Retention Schedule

The Company shall retain biometric data only until, and shall request that its vendors and the licensor of the Company's Biometric Software permanently destroy such data when, the first of the following occurs:

- The initial purpose for collecting or obtaining such biometric data has been satisfied, such as the termination of the employee or contractor's relationship with the Company; or
- Within 3 years of the employee or contractor's last interaction with the Company.

Biometric data will be deleted from the Company's Biometric Software systems promptly after an employee or contractor's relationship with the Company ceases.

In no situation will biometric data be retained for more than three years after an employee or contractor's last interaction with the Company, unless otherwise required by law.

Data Storage

Biometric data will be stored, transmitted, and protected using a reasonable standard of care for the Company's industry, in a manner that is the same as or that exceeds the standards of care used to protect other confidential information held by the Company. This includes, among other things, restricting access to biometric data to authorized Company employees or vendors who have a business need to access the information, and using reasonable technological means to prevent unauthorized access to the information. Such storage, transmission, and protection from disclosure shall be performed in a manner that is the same as or more protective than the manner in which the Company stores, transmits and protects from disclosure other confidential and sensitive information, including personal information that can be used to uniquely identify an individual or an individual's account or property, such as genetic markers, genetic testing information, account numbers, PINs, driver's license numbers and social security numbers.

Consequence Management

A violation of this Policy by an employee or contractor is subject to the Code of Conduct/Staff Handbook of the Company and all other Company policies and procedures.

Responsibility

Role	Responsibilities
Human Resources & Information Security	Obtaining consent signature from employees/consultant. Track, document, store all consent forms to central location. Assure all biometric data is removed once employee leaves Sagility.
Legal	Yearly updates to Policy to adhere to state or federal law.



	Advising on when it is necessary to undertake or amend Biometric Acknowledgement and Consent Form.
--	--



SAGILITY™ BIOMETRIC INFORMATION PRIVACY POLICY

ACKNOWLEDGEMENT AND CONSENT

The employee or contractor named below has been advised and understands that the Company, its vendors, and/or the licensor of the Company's Biometric Software may collect, retain, and use biometric data for the purpose of monitoring of Company computers, to monitor remote employee work, for employee identification to ensure security of sensitive information and confidential data, fraud prevention, integrity, and compliance while work is being performed by employees or contractors on behalf of the Company. Biometric Software is a computer-based system that may scan an employee or contractor's facial geometry or fingerprint for purposes of identification. The computer system may extract unique data points and create a unique mathematical representation used to verify the employee or contractor's identity, for example, when the employee or contractor arrives at or departs from the workplace. The Company's personnel, its vendors, and/or the licensor of the Company's Biometric Software third-party recipients are only authorized to access and use biometric data for contracted purposes and for the duration of our contract with them. They may have access to biometric data for a limited time under reasonable contractual and technical safeguards to limit their use of such biometric data. We require them to protect personal data with organizational, physical, and technical controls that are consistent with this Privacy Policy.

Applicable State and local laws regulate the collection, storage, use, and retention of biometric identifiers and biometric information. Biometric identifier means a retina or iris scan, fingerprint, voiceprint, or scan of hand or face geometry. Biometric information means any information, regardless of how it is captured, converted, stored, or shared, based on an individual's biometric identifier used to identify an individual.

Sagility fully recognizes that under the Data Privacy Act, the individuals to be covered by this Policy fall under the definition of Data Subjects. As such, they are accorded the following rights under the said law:

- **Right to be informed** - Data Subjects have the right to demand and be informed of the details about the type of personal information, the purpose of processing, and how they are being processed by SAGILITY, including its sources, recipients, methods, disclosures to third parties and their identities, automated processes, manner of storage, period of retention, manner of disposal and any changes to such processing activities before the same is undertaken.
- **Right to access** - Data Subjects have the right to have reasonable access to their personal information, sensitive or otherwise, upon demand. They have the right to review and amend their personal information processed by SAGILITY in case there are errors.
- **Right to dispute** - Data Subjects have the right to dispute inaccuracy or error in personal information processed by Sagility.
- **Right to object** - Data Subjects have the right to reject further processing of their personal information, including the right to suspend, withdraw, and remove their personal information in possession of Sagility which are falsely collected or unlawfully processed.

The employee or contractor may revoke this consent at any time by notifying the Company in writing. If the employee or contractor revokes the consent or refuses to execute the consent the employee or contractor may not be allowed to provide services to a client or clients where biometric monitoring is requested or required by the client.



By clicking "Yes" below, you hereby acknowledge that you have received the attached Biometric Information Privacy Policy, and that you voluntarily consent to the Company, its vendors', and/or the licensor of the Company's Biometric Software's monitoring, collection, storage, and use of biometric data through Biometric Software as described therein, including to the extent that it utilizes your biometric identifiers or biometric information as defined in applicable State and local laws, and voluntarily consent to the Company providing such biometric data to its vendors, and/or the licensor of the Company's Biometric Software.

Electronic Signature

Date

Name